

Form No.HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT**

C.R. No.517 of 2018.

Muhammad Umar

Versus

Hafiz Muhammad Idrees

S.No.of order/ Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties' counsel, where necessary.
	31.03.2026	Mr. Tariq Mehmood Khan, Advocate for the applicant. Syed Munawar Hussain Bukhari, Advocate for the respondent.

C.M.No.163 of 2025

Through the instant application which has been filed under Order IX Rule 4 read with Section 151 of the Code of Civil Procedure, 1908 (“CPC”), the applicant seeks recall of the order dated 10.12.2024 whereby the titled Civil Revision No.517 of 2018, filed by the applicant, was dismissed for non-compliance of order of this Court.

2. For facility of reference, order dated 10.12.2024 is reproduced hereunder:-

“10.12.2024: Nemo

There is a written request for an adjournment on behalf of the learned counsel for the petitioner that he is indisposed. Perusal of the order sheet would reflect that on 04.11.2024, the case was adjourned for today and it was specifically cautioned that no further adjournment shall be granted with a direction to the parties to make alternate arrangement in case of non-availability of learned counsels but neither the learned counsel for the petitioner nor the petitioner is in attendance to argue this case and no alternate arrangement has been made, therefore, this petition is dismissed for non-compliance of order of this Court keeping in view the judgments reported as Moon Enterpriser CNG Station Rawalpindi v. Sui Northern Gas Pipelines Limited through General Manager, Rawalpindi and another (2020 SCMR 300)

and Imran Ahmad Khan Niazi v. Mian Muhammad Shahbaz Sharif (2023 SCMR 636). ”

3. Learned counsel for the applicant contends that the provisions of Order XVII Rule 3 CPC have been erroneously applied as the said provision is not attracted to a case of non-appearance by both the parties. It is argued that in such circumstances, at best Order XVII Rule 2 CPC could have been invoked. He further submits that the civil revision could not have been dismissed under Rule 3 in any event. In support of his contentions, learned counsel has placed reliance on the cases of “Mst. Shahida Zareen v. Iqrar Ahmed Siddiqui” (PLJ 2011 SC 82), “Muhammad Haleem and others v. H.H. Muhammad Naim and others” (PLD 1969 SC 270) and “Haji Wajdad v. Provincial Government through Secretary, Board of Revenue, Government of Balochistan, Quetta and others” (2020 SCMR 2046). Learned counsel further submits that the applicant being old and unwell, was unable to contact his counsel, who was also ill and thus could not convey compliance with the directions of this Court, therefore, the non-compliance of this Court’s order was not deliberate or intentional.

4. Conversely, learned counsel for the respondent has supported the impugned order for the reasons recorded therein.

5. I have heard the learned counsel for the parties and have carefully examined the record.

6. The pivotal question which arises for determination is whether a civil revision, after having been admitted to regular hearing, can be dismissed for non-compliance of order of this Court or is it

mandatorily required to be decided on merits irrespective of such default.

7. Before advertng to the legal position, it would be advantageous to recapitulate the conduct of the applicant as reflected from the order sheet, which unmistakably demonstrates that after securing an interim relief in the shape of suspension of the impugned judgment and decree, the applicant exhibited persistent indolence in prosecuting the matter. Despite repeated efforts on the part of the respondent who moved as many as six applications for early hearing, the applicant neither took any initiative to pursue the case nor ensured consistent representation before this Court. Even on the dates fixed at the instance of the respondent, appearance on behalf of the applicant remained sporadic and casual and adjournments were sought on one pretext or another.

8. The matter reached its culmination on 04.11.2024 when this Court, taking note of the previous conduct of the applicant, granted a last opportunity with a specific direction to make alternate arrangements in case of non-availability of learned counsel. This direction was unequivocal and left no room for ambiguity. However, even this final indulgence was not availed in its true spirit, as neither the applicant nor any counsel appeared on the next date i.e. 10.12.2024 and yet again a written request for adjournment was transmitted. Such conduct clearly manifests not only disregard of the Court's order but also a lack of *bona fide* interest in adjudication of the *lis*.

9. In the above backdrop, it is now to be examined as to what is the settled legal position governing such a

situation and whether the conduct of the applicant as noted above justifies dismissal of the civil revision for non-compliance or warrants its decision on merits. The instant case was initially filed as First Appeal against Order laying a challenge to judgment and decree dated 20.08.2016 and subsequent order dated 15.05.2018 passed by the Additional District Judge, Bahawalpur whereby an application filed under Section 12(2) of CPC was dismissed. However, on 30.05.2018 on the request of the learned counsel for the petitioner, the appeal was converted into Civil Revision, under Section 115 of the CPC, relevant portion whereof is reproduced hereunder:-

“115. Revision.—(1) *A High Court may call for the record of any case which has been decided by any Court subordinate to that High Court and in which no appeal lies thereto, and if such subordinate Court appears-*

(a) to have exercised a jurisdiction not vested in it by law; or

(b) to have failed to exercise a jurisdiction so vested; or

(c) to have acted in the exercise of its jurisdiction illegally or with material irregularity,

the High Court may make such order in the case as it thinks fit:

Provided that where a person makes an application under this sub-section, he shall, in support of such application, furnish copies of the pleadings, documents and order of the subordinate Court and the High Court shall, except for reasons to be recorded, dispose of such application without calling for the record of the subordinate Court:

Provided further that such application shall be made within ninety days of the decision of the subordinate Court which shall provide a copy of such decision within three days thereof and the High Court shall dispose of such application within six months.

(2) A District Court may exercise the powers conferred on the High Court by sub-section (1) in respect of any case decided by a Court subordinate to that District Court in which no appeal lies and the amount or value of the subject-matter whereof

does not exceed the limits of the appellate jurisdiction of the District Court.”

A careful reading of above provision reveals that the revisional jurisdiction of the High Court can be set in motion in two distinct manners. Firstly, the Court may, of its own motion, call for the record of a case decided by a subordinate Court to satisfy itself regarding the legality, propriety or jurisdictional correctness of such decision. Secondly, such jurisdiction may be invoked at the instance of an aggrieved person through an application made under the said provision. This distinction is not merely procedural but has substantive implications. In the former situation, the proceedings assume the character of *suo motu* supervisory jurisdiction where the matter essentially remains between the High Court and the subordinate Court. In the latter case, however, the proceedings having been triggered at the behest of a litigant, are subject to the general discipline of adversarial litigation including the obligation of the applicant to diligently prosecute the matter.

10. The Supreme Court of Pakistan in the case of “Ghulam Qadir and others v. Sh. Abdul Wadood and others” (PLD 2016 SC 712), has explained the distinction between appeal and revision and held that where revisional jurisdiction is invoked by a party, the High Court is not bound to decide the matter on merits in the absence of such party and the revision can validly be dismissed for non-prosecution. Conversely, where the Court itself takes cognizance of a matter in exercise of its *suo motu* powers, it may be required to examine the case on merits irrespective of the presence of the

parties. Relevant excerpt from the said judgment is reproduced below:

“7. - - - In fact, the admission of a civil revision petition is analogous to a leave granting order of this Court which means that there is a point(s) which needs consideration and if the appellant does not appear after leave is granted, it (appeal) can be dismissed for non-prosecution and not necessarily on merits. The same reasoning applies to civil revisions. Supervisory jurisdiction does not mean that the revisional court cannot dismiss a civil revision for non-prosecution. For that matter, the appellate jurisdiction also forms part of the supervisory jurisdiction of the court but it is not the case that appeals cannot be dismissed for non-prosecution. Order XLI, Rule 17 allows the appellate court to dismiss an appeal for non-prosecution and Rule 19 of the same order provides for re-admission of an appeal dismissed under Rule 17 ibid subject to the appellant showing "sufficient cause" for non-appearance. There are no corresponding provisions regarding civil revisions. Nonetheless there is no bar whatsoever contained in the positive law, i.e. C.P.C., preventing the revisional court from dismissing a civil revision for non-prosecution. The revisional court can regulate admission, dismissal for non-prosecution and restoration thereof in the same manner as the trial - - -

8. As held in various judgments of this Court, there are two aspects to the jurisdiction of the revisional court, firstly, where the revisional court itself takes cognizance of a matter while exercising its suo motu powers under Section 115(1) of the C.P.C., and secondly, where a person brings the matter to the notice of the revisional court under the first proviso to Section 115(1) ibid. This bifurcation is significant. The matter is only between the revisional court and the subordinate court when the court itself invokes its revisional jurisdiction. However, in the second instance, it is essentially adversarial litigation and in that eventuality, although the court is still acting in its supervisory jurisdiction, the revision can certainly be dismissed for non-prosecution. To hold otherwise would be incorrect for several reasons. Firstly, it would lead to the absurd situation where a person having once invoked the revisional jurisdiction of the court by filing a civil revision subsequently admitted to regular hearing, would be unable to withdraw such

revision. Besides, it would negate the very purpose and mandate of the first proviso to Section 115(1) of the C.P.C. under which any person can file a revision application. On the basis of this reasoning, revisional courts would not be able to dismiss revision petitions rendered infructuous in light of a compromise entered into between the parties. Secondly, such an interpretation presumes the provisions of Section 115 of the C.P.C., which employ the word "may", are mandatory thereby reading into the statute something which is not there which (exercise) in turn is impermissible. Thirdly, it would render superfluous the centuries-tested legal maxim vigilantibus et non dormientibus jura subveniunt lex, meaning that law aids the vigilant, not the indolent. The revisional court should only exercise its discretion in favour of those who conscientiously pursue their rights and not those who sleep over them which conduct would indubitably disentitle such persons to discretionary relief. The revisional court should not be compelled to decide a civil revision on merits in the absence of either party(ies) just because it has been admitted to regular hearing. The court should not be rendered a slave to a person who files a revision petition and subsequently chooses not to appear before the revisional court due to disinterest or ignorance/indolence, and neither should such person be awarded a premium/privilege in this regard, as this would result in (possible) injustice to the contesting party."

11. In view of the above, it is clear that a civil revision filed by a party itself, even if admitted for regular hearing, can be dismissed for non-prosecution and a revisional court should not be compelled to decide a civil revision on merits in the absence of either party(ies) just because it has been admitted to regular hearing. In the said judgment it was laid down that the court should not be rendered a slave to a person who filed a revision petition and subsequently chose not to appear, nor should such person be awarded a premium for his indolence. The underlying rationale is rooted in the maxim *vigilantibus et non dormientibus jura*

subveniunt—the law aids the vigilant and not those who sleep over their rights.

12. Viewed from the above perspective, both situations i.e., the dismissal for non-prosecution and dismissal for non-compliance of a Court direction stem from a common underlying principle of failure of the party to diligently pursue the remedy and to adhere to the procedural discipline imposed by the Court. In fact, non-compliance of a specific direction of the Court, particularly when coupled with a history of repeated defaults, stands on an even weaker footing and provides a stronger justification for termination of proceedings. Thus, in the context of revisional jurisdiction, the principles governing dismissal for non-prosecution, as elucidated in *Ghulam Qadir's* case, equally inform and justify dismissal of a civil revision for non-compliance of Court orders, especially where the jurisdiction has been invoked by a party and not exercised *suo motu* by the Court.

13. The case law relied upon by the learned counsel for the applicant is distinguishable on facts and do not advance his case in view of the authoritative pronouncement of the Supreme Court in *Ghulam Qadir's* case *supra*.

14. The cumulative conduct of the applicant, marked by repeated non-appearances, failure to comply with specific directions of the Court and lack of diligence in prosecuting the matter, clearly disentitles him from any discretionary relief. The impugned order dated 10.12.2024, therefore, cannot be faulted either on legal or factual grounds.

15. Furthermore, the other grounds pleaded in the instant application, such as illness, lack of communication and foggy weather, are vague, unsubstantiated and do not constitute sufficient cause, particularly in view of the consistent pattern of negligence exhibited by the applicant over a prolonged period.

16. For the foregoing reasons, the impugned order is in consonance with law and does not warrant interference. Consequently, the instant application, being devoid of merit, is dismissed.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**